

IN THE SUPREME COURT OF BANGLADESH
HIGH COURT DIVISION
(CIVIL REVISIONAL JURISDICTION)

Present:

Mr. Justice Md. Moinul Islam Chowdhury

Civil Revision No. 2381 of 2010

Md. Abdur Rahim Munshi

----- Defendant-Respondent-Petitioner

=Versus=

Amirul Islam and others

---- Plaintiff-Appellant-Opposite Parties

Mr. Khair Ezaz Maswood, with

Mr. Md. Nazmul Huda,

Mr. Md. Mozahar Hossain,

Mr. Mohammad Faridur Rahman, and

Ms. Subrina Parvin, Advocates

----- For the Petitioner

Mr. Shah Md. Khasruzzaman, and

Ms. Resma Sultana, Advocates

----- For the Opposite Parties

Heard on 09.11.2017 and

Judgment on 26.11.2017

At the instance of the present-defendant-respondent-petitioner, Md. Abdur Rahim Munshi, this Rule has been issued calling upon the opposite party Nos.1-2 to show cause as to why the impugned judgment and decree dated 10.02.2010 (degree signed on 16.02.2010) passed by the learned Additional District Judge, 2nd court, Barisal in Title Appeal No.165 of 1983 allowing the appeal and thereby reversing the judgment and decree dated 28.04.1983 (degree signed on 15.05.1983) passed by

the learned Munsif, Ist court, Barisal in Title Suit No.237 of 1976 dismissing the suit should not be set aside.

The relevant facts for disposal of this Rule, *inter-alia*, are that the present-opposite party Nos.1 and 2 as the plaintiffs filed the Title Suit No.237 of 1976 in the court of the then learned Munsif, court No.1, Barisal for declaration of title and recovery of khas possession by evicting the defendant and by removing structure upon the land measuring 30 decimals appertaining to R.S. Khatian No.208 and S.A. Khatian No.166, Dag No.65 out of total 94 decimals, Mouja Baborkhana, Ujirpur, District- Bakerganj. The plaint contains that the (suit land) originally belonged to Edon Sharif, who died leaving behind his two sons namely, Abdul Aziz Sharif, Abdul Kader Sharif and two daughters namely, Sonaboru and Fokimunnessa, who became defaulter for not paying rent to the C.S. recorded owner, thus, the land was put on auction through the Execution Case No.1350 of 1935 (Exhibit-2) arising from the Rent Suit No.4789 of 1934 (Exhibit-3) in the court of the then learned Munsif, Barisal. One Abdus Sattar purchased the land on auction on 15.11.1935 and obtained a sale certificate on 14.05.1936. The said Abdus Sattar sold the suit land along with other land by the registered sale deed dated 12.01.1973 (Exhibit-1) and the present-plaintiff-opposite parties mutated their names through Miscellaneous Case in the name of

the plaintiffs and they are in possession since their purchase. The present-defendant-petitioner forceful entered into the land and constructed a cowshed, cook shed and also a tank in the suit land in February, 1976 thus, this suit was filed.

The present-petitioner as the defendant No.1 contested the suit by filing a written statement denying the statement made in the plaint. The defence case is that one Abdul Kader Sharif and Abdul Aziz Sharif, son of Edon Sharif gifted the suit land along with other land to their respective wives namely, Mokimunnessa and Jambila Khatun by registered gift deed dated 14.08.1933 and also delivered possession thereof. The said Jambila Khatun transferred the suit land along with other land to the defendants and also possession was delivered. They possess the suit land by constructing huts and residing therein.

After hearing the parties the learned trial court decreed the suit on 24.08.1978 but on an appeal the appeal was allowed by sending back the suit on remand by setting aside the judgment, accordingly, the Title Suit No.237 of 1976 was reheard afresh by the then learned Munsif, court No.1, Barisal and the suit was dismissed after hearing the parties by the learned trial court who by his judgment and decree dated 28.04.1983. Being aggrieved the present-opposite parties as the appellants preferred the Title Appeal No.165 of 1983 in the court of the learned District

Judge, Barisal which was heard by the learned Additional District Judge, court No.2, Barisal on transfer, who by his judgment and decree dated 10.02.2010, allowed the appeal by setting aside the judgment of the trial court. This revisional application has been filed under Section 115(1) of the Code of Civil Procedure challenging the legality of the said impugned judgment and decree passed by the learned appellate court and the present Rule was issued thereupon.

Mr. Khair Ezaz Maswood, the learned Advocate, appearing along with the learned Advocates Mr. Mozahar Hossain, and Mr. Md. Nazmul Huda for the petitioner submits that the leaned lower appellate court has failed to reverse the definite findings of the learned trial court as to the possession of the suit land with clear assertion that the plaintiffs do not possess the suit land by any means rather the suit land is possessed by the defendants, as such, the learned lower appellate court has committed an error of law resulting in an error in the decision occasioning failure of justice in not dismissing the appeal, therefore, the Rule is made absolute.

The learned Advocate also submits that the Rent Suit No.4789 of 1934 and the auction purchase are therefrom could not be binding upon the predecessor of the present-petitioner namely, Jambila Khatun as she was not made a party in the said rent suit as Jambila Khatun got the suit land by way of registered deed of gift dated 14.06.1933 (Exhibit-B) prior

to the rent suit, as such, the learned trial court properly considered and came to a lawful conclusion but the learned appellate court misread the document thereby wrongly concluded to allow the appeal, as such, this Rule should be made absolute.

The learned Advocate further submits that the sale deed in favour of the present-plaintiff-opposite party on 12.01.1973 (Exhibit-1) by auction purchaser Abdus Sattar was a fraud practice upon court as the said deed was registered in a place where only one decimal of land was situated out of total more than 8.62 acres, therefore, the learned appellate court committed an error of law by allowing the appeal, thus, the Rule should be made absolute. He also submits that the present-petitioner is in possession of the suit land.

The Rule has been opposed by the present-opposite party Nos. 1 and 2.

Ms. Reshma Sultana, the learned Advocate appearing along with the learned Advocate Md. Shah Md. Khosruzzaman for the opposite party, submits that the heirs of the original rayath holder, Edon Sharif, became defaulter to pay rent to the original landlord namely, Roy Rangini Devi who was the owner of the suit land and other land, as such, there was the Rent Suit No.4789 of 1934 and the decree therefrom was put on execution by the Execution Case No.1350 of 1935,

thereafter, the property was purchased by one Abdus Sattar on auction dated 14.05.1940, who subsequently sold to the present-plaintiff-opposite parties by the sale deed dated 12.01.1973 as Exhibit-1 but the learned trial court misread the evidence and came to a wrongful conclusion in the suit, whereas, the learned appellate court found a chain of title of the present-opposite parties and allowed the appeal but the present-petitioner obtained the present Rule by misleading the court, as such, the Rule should be discharged.

The learned Advocate further submits that the present-petitioner was not a necessary party in the rent suit filed in the year 1934 as the purported deed of gift or deed of heba dated 14.06.1933 was not disclosed until 1973 while the said heba was challenged by filing the Title Suit No.175 of 1974 but it could not be succeeded to prove as a valid document through a lengthy litigation, therefore, the fact of the rent suit and auction purchase by the predecessor of the present-opposite parties remained valid, therefore, the Rule is liable to be discharged.

The learned Advocate also submits that Section 28 of the Registration Act, 1908 provided no restriction of a sale deed in choosing a place for registering a document relating to a land, therefore, the deed dated 12.01.1973 became valid and remained operative document but the learned trial court misread. She also submits that the present-opposite

parties are in possession by way of Mutation Case No.3604/1972-73 as Exhibit-14(d) and by paying khajna to the government Exhibit-13(a-c) which proved that the present-opposite parties are in actual possession of the suit land.

Considering the above submissions made by the learned Advocates appearing for the respective parties and also considering the revisional application filed under Section 115(1) of the Code of Civil Procedure along with Annexures therein, in particular, the impugned judgment and decree passed by the appellate court and also perusing the materials in the lower court records, it appears to me that the present-opposite parties as the plaintiffs filed the title suit claiming title and recovery of khas possession by evicting the present-petitioner. The admitted position between the parties is that the suit land was originally owned by Edon Sharif, who died leaving behind his legal heirs namely, Abdul Sharif, Abdul Kader Shrif and two daughters namely, Sonaboru and Fokimunnessa. However, there are some disputed factual aspects between the parties are that the present-plaintiff-opposite parties claimed that the said Abdul Kader and Abdul Aziz and others became defaulter to pay khajna to the superior landlord, thus, the rent suit was filed being Rent Suit No.4789 of 1934 and the Execution Case No.1350 of 1935. The suit land was put on auction on 14.05.1936 which was purchased by

one Abdus Sattar through a sale certificate dated 14.05.1936. On the other hand, the present-defendant-petitioner claimed that the suit land was gifted by the said Abdul Aziz and Abdul Kader in favour of their wives by a deed of gift dated 14.06.1933. It is also disputed between the parties as to their claim of entitlement through a sale deed dated 12.01.1973 in favour of the present-opposite party nos.1 and 2, whereas, the present-defendant-petitioner claimed his entitlement through a sale deed dated 02.06.1976 from Jambila Khatun.

From the above conflicting factual aspects this Court has to take a decision as to the said two documents dated 12.01.1973 as Exhibit-1 and the sale deed dated 02.06.1976 Exhibit- 1-A were valid and operative. In order to answer this question I have carefully perused and examined the documents in order to find out a chain of entitlement upon the suit land measuring 30 decimals. The present-plaintiff-opposite parties have adduced and produced Exhibits-1-16 in order to prove their entitlement which are based on auction purchase by the predecessor of the present-opposite parties who had a sale certificate in their favour in the year 1935. The sale certificate was based on a rent suit being Rent Suit No.4789 of 1934 which has been exhibited in the lower court. The main argument forwarded by the present-defendant-petitioner is that the said rent suit was not binding upon the present-petitioner as the predecessor

of the petitioner namely, Jambila Khatun, was not made a party in the rent suit, who had obtained the suit land by way of a deed of gift executed by Abdul Kader Sharif and Abdul Aziz Sharif dated 14.06.1933. I have perused the document but I failed to find as to why the said deed of gift or Heba-bil-Ewaj was not disclosed or the possession was not handed over pursuant to the deed of Heba which was an essential requirement for such kind of Shariat law.

Moreover, I have also examined the contents of the deeds which have been executed by Abdul Kader Sharif and Abdul Aziz Sharif as the husband to their respective wives namely, Jambila Khatun and Makimunnessa, which were not disclosed until 1973-74. There was a title suit regarding the validity of the deed of Heba being Title Suit No.175 of 1973-74 which travelled upto this Court by way of Civil Revision No.3009 of 1991 and it was found that the deed of Heba was inoperative and invalid. Therefore, if the Heba in favour of Jambila Khatun became inoperative through title suit beginning in the year 1974 then the present-defendant-petitioner could not have accrued entitlement through an inoperative document.

In view of the above, I am of the opinion that the learned trial court failed to consider and to apply judicial mind in reading the documentary evidence adduced and produced by the respective parties in

the court thereby came to a wrongful conclusion to dismiss the suit filed by the present-opposite parties whereas, the learned appellate court after considering the above relevant document came to a lawful conclusion as the deed of Heba as illegal and such Heba cannot create any entitlement. The present-plaintiff-opposite parties successfully proved their entitlement in the suit.

Regarding Section 28 of the Registrations Act, 1908, the learned Advocate for the petitioner submits that the sale deed dated 12.01.1973 was registered with the Gouranadi Sub-Registrar's Office, where the land measuring 1 decimal belongs in order to defraud the purchase. In this regard, the relevant law of Section 28 of the Registration Act, 1908 is reproduced below:

“28. Place for registering documents relating to land (1)- Save as in this Part otherwise provided, every document mentioned in section 17, sub-section(1), clause (a)(b)(c)(d) and (e), section 17, sub-section (2), and section 18, in so far as such documents affects immovable property shall be presented for registration in the office of a Sub-Registrar within whose Sub-district the whole or major portion of the property to which such document relates is situate.

Provided that where the major portion of such property is not situate within one sub-district the document shall be presented for registration in the

office of the Sub-Registrar within whose sub-district and portion of such property is situate.”

Prior to the amendment of the Registration Act, 1985, any place of registration of any document relating to land where whole or some portion of any property was situated. Therefore, I do not consider that there was illegality in registering the sale deed or purchase deed dated 12.01.1973 in favour of the plaintiff-opposite party. Moreover, the plaintiff could prove their possession upon the suit land by filing exhibit-2L and also payment of Khajna in favour of the government by the Exhibit-13A-C.

Now, I am inclined to examine the judgment and decree passed by the learned court below. The learned trial court came to a wrongful conclusion to dismiss the suit filed by the present-plaintiff-opposite parties on the basis of the following finding:

“The deed of gift of the deft’s predecessor interest has been duly registered; and as a result Notice to the landlord. It is to be presumed that all the processes has been duly served and complied with. In this connection Ld. Advocate for the defdt. cited a ruling reported in 10 D.L.R. at page 533. I now like to draw my attention in Rent Execution Case No.1350/1935’ (Ext.4) which was started for execution of the decree passed in Rent Suit No.4789 of 1937 (Ext.2). Admittedly, in those proceedings Jambila Khatun who was the vendor of the defdts was not impleaded

party. Therefore, it can be easily hold that she was not notified and in this regard it is the position of law that, notice in a rent suit if not served upon the actual person who ought to have been impleaded party then the rent suit shall take the status of a money suit. The auction cannot have any holding effect on Jambila Khatun. Therefore, the title of the defdt No.1 is uneffected. Art 144 of the Limitation Act will govern the suit.”

On the other hand, the learned appellate court came to a lawful conclusion to allow the appeal preferred by the present-opposite party on the basis of the following finding:

স্বাভাবিক ভাবে বিবাদী পক্ষের কবলা দলিলটি বা ঐ দলিল বানিয়াছ অর্থাৎ ইং ১৪/৬/৩৩ তারিখের দানপত্র দলিলটি কার্যকরী হয় থাকলে নালিশী জমি ব্যতিরেকে অন্যান্য জমিতে ঐ হেবা গ্রহিতাগ্রের স্বত্বস্বার্থ থাকার কথা। অথচ ঐ হেবা দলিলের অপর গ্রহিতা কিংবা মূল রেকর্ডিয় মালিক এদন শরীফের অন্য কোন ওয়ারিশ বা এমিক ওয়ারিশ তাদের পাণ্ড জমি দাবী করে কোথাও কোন প্রতিকার প্রার্থী হন নাই। ফলে বিবাদীপক্ষের দাবী মতে ঐ ইং ১৪/৬/৩৩ তারিখের হেবা দলিলটি আদৌ কার্যকরী হয় নাই মর্মে সিদ্ধান্ত দেওয়া গেল।

In view of the above discussions and examination of the judgment and decree passed by the courts below, I am of the opinion that the learned trial court committed an error of law by dismissing the suit without considering the relevant document for entitlement upon the suit land. On the other hand, the learned appellate court came to a lawful conclusion to allow the appeal on considering and reading properly the

evidence adduced and produced by passing the parties by the impugned judgment and decree. I am, therefore, not inclined to interfere into the impugned judgment and decree passed by the learned appellate court.

Accordingly, I do not find merit in the Rule.

In the result, the Rule is discharged.

The ad-interim order of stay granted at the time of issuance of the Rule upon the operation of the impugned judgment and also to maintain status-quo in respect of possession and position of the suit land are hereby recalled and vacated.

The office is directed to communicate this judgment and order to the concerned court immediately and the office is also directed to send down the lower courts' record at once.